

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
ISHMAEL SANDERS,

Plaintiff,

- against -

Plaintiff designates
Bronx County
the place of trial

The basis of venue is
Location of occurrence

THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER OSWALD (Shield No.:
1696), NEW YORK CITY POLICE OFFICER
PICHARDO (Shield No.: 16188), NEW YORK
CITY POLICE OFFICER/SERGEANT ROBINSON
(Shield No.: 5144) and NEW YORK CITY
POLICE OFFICER/Lieutenant BOWMAN,

SUMMONS

Plaintiff resides at:
1420 Amsterdam Ave, 13J
New York, NY 10027

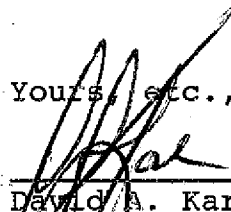
Defendant.
-----X

To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
July 12, 2023

Yours, etc.,



David A. Karlin, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

BELOVIN FRANZBLAU & ASSOCIATES, PC

Defendant(s) Address(es):

THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER/DETECTIVE OSWALD (Shield No.: 1696)

c/o 40th Precinct

257 Alexander Avenue

Bronx, NY 10454

NEW YORK CITY POLICE OFFICER/DETECTIVE PICHARDO (Shield No.: 16188)

c/o 40th Precinct

257 Alexander Avenue

Bronx, NY 10454

NEW YORK CITY POLICE OFFICER/SERGEANT ROBINSON (Shield No.: 5144)

c/o 40th Precinct

257 Alexander Avenue

Bronx, NY 10454

NEW YORK CITY POLICE OFFICER/LIEUTENANT BOWMAN

c/o 40th Precinct

257 Alexander Avenue

Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
ISHMAEL SANDERS,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No:

**THE CITY OF NEW YORK, NEW YORK CITY
POLICE OFFICER/DETECTIVE OSWALD (Shield
No.: 1696), NEW YORK CITY POLICE
OFFICER/DETECTIVE PICHARDO (Shield No.:
16188), NEW YORK CITY POLICE
OFFICER/SERGEANT ROBINSON
(Shield No.: 5144) and NEW YORK CITY
POLICE OFFICER/Lieutenant BOWMAN,**

Defendants.
-----X

Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU &
ASSOCIATES, PC**, as and for a verified complaint, respectfully
allege as follows:

1. At all the times hereinafter mentioned, plaintiff was,
and still is, a resident of the City and State of New York, County
of Bronx.

2. At all the times herein, the defendant, **THE CITY OF NEW
YORK**, was, and still is a duly licensed Municipal Corporation
authorized to transact business in City of New York, County of
Bronx, State of New York.

3. At all the times herein, the defendant, **THE CITY OF NEW
YORK**, was, and still is a duly licensed Municipal Corporation

authorized to transact business in City of New York, County of Bronx, State of New York.

4. At all the times herein, the defendant, **THE CITY OF NEW YORK**, was, and still is a duly licensed entity authorized to transact business in City of New York, County of Bronx, State of New York.

5. Upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **NEW YORK CITY POLICE OFFICER/DETECTIVE OSWALD** (Shield No: 1696) (hereinafter P.O./Det. OSWALD), **NEW YORK CITY POLICE OFFICER/DETECTIVE PICHARDO** (Shield No.: 16188) (hereinafter P.O./Det. PICHARDO), **NEW YORK CITY POLICE OFFICER/SERGEANT ROBINSON** (Shield No.: 5144) (hereinafter SGT. ROBINSON) and **NEW YORK CITY POLICE OFFICER/Lieutenant BOWMAN** (hereinafter Lt. BOWMAN).

6. Upon information and belief, as of July 15, 2022, the defendant, **THE CITY OF NEW YORK**, employed P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, who were herein duly employed and acting as a Police Officers (or other ranking officer) with the police department of **THE CITY OF NEW YORK**.

7. Upon information and belief, all times herein, the defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, were and still are employees of **THE CITY OF NEW YORK** as Police Officers (or other ranking officers) and were at

all times herein, acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**.

8. Upon information and belief, all times herein, the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, were and still are employees of **THE CITY OF NEW YORK** as Police Officers (or other ranking officers) and were at all times herein acting within the furtherance and scope of their employment with **THE NEW YORK CITY POLICE DEPARTMENT**.

9. **THE CITY OF NEW YORK** condoned all of the actions of **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, as set forth herein and hereinafter.

10. **THE CITY OF NEW YORK POLICE DEPARTMENT** condoned all of the actions of **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, as set forth herein and hereinafter.

11. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, pursuant to the doctrine of respondeat superior.

12. The defendant, **THE CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN** and **THE NEW YORK CITY POLICE DEPARTMENT**, pursuant to the doctrine of respondeat superior.

13. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON** and **Lt. BOWMAN**, as herein and hereinafter set forth.

14. Upon information and belief, **THE CITY OF NEW YORK**, at all times herein, expressly and/or implicitly condoned all of the acts of the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON** and **Lt. BOWMAN** and **THE NEW YORK CITY POLICE DEPARTMENT**, as herein and hereinafter set forth.

15. Upon information and belief, each and all of the acts of the defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON** and **Lt. BOWMAN** alleged herein were done by defendants, both as individuals, and collectively, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York, and under the authority of their position as Police Officers (or other ranking officers) for the defendant, **THE CITY OF NEW YORK**.

16. Upon information and belief, beginning on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at said location, when the defendants falsely, improperly and without legal justification, targeted, chased, pursued, struck with a vehicle, tackled, stopped, held, detained, questioned, assaulted, battered, punched in the face,

threatened, placed in fear of imminent physical injury, violated plaintiff's constitutional rights, injured, beat, handcuffed, arrested, imprisoned, transported, searched, charged and participated in prosecuting the plaintiff, all against plaintiff's will, all with plaintiff's knowledge and all without plaintiff's consent.

17. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location.

18. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants.

19. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force.

20. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and

properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force and thereafter, while detained and while not offering any resistance, the plaintiff was punched the face by the defendants.

21. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force and thereafter, while detained and while not offering any resistance, plaintiff was punched in the face by the defendants and suffered permanent injury to his teeth.

22. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force and thereafter, while detained and while not offering any resistance, plaintiff was punched in the face by the defendants and suffered permanent injury to his teeth and other physical and emotional injury.

Plaintiff's Exhibit 10

BELOVIN FRANZBLAU & ASSOCIATES, PC

23. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force and thereafter, while detained and while not offering any resistance, plaintiff was punched in the face by the defendants and suffered permanent injury to his teeth and thereafter was improperly held, detained, searched, arrested and threatened by the defendants while handcuffed inside a prisoner van.

24. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, plaintiff was lawfully and properly at said location when he was improperly, illegally and without proper cause, chased by the defendants who stopped the plaintiff by the improper and unjustified use of force and thereafter, while detained and while not offering any resistance, plaintiff was punched in the face by the defendants and suffered permanent injury to his teeth and thereafter was improperly held, detained, searched, arrested and threatened by the defendants while handcuffed inside a prisoner van and the plaintiff was aware of such all actions and did not consent to any of said actions by the defendants.

25. Upon information and belief, the defendants, **CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, arrested, imprisoned, battered, threatened and wrongfully searched the plaintiff without sufficient justification or just cause, and any said accusations against the plaintiff were completely false and improper.

26. Upon information and belief, the defendants, **CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, arrested, imprisoned, battered, threatened and wrongfully searched the plaintiff without sufficient justification or just cause, and any said accusations against the plaintiff were completely false and improper and the defendants thereafter cooperated in and improperly and maliciously aided in the prosecution of the plaintiff.

27. Upon information and belief, the defendants, **CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully, improperly and without probable or just cause, wrongly targeted, profiled, singled out, violated, held, detained, arrested, imprisoned, battered, threatened and wrongfully searched the plaintiff without sufficient justification or just cause, and

any said accusations against the plaintiff were completely false and improper and the defendants thereafter cooperated in and improperly and maliciously aided in the prosecution of the plaintiff and any and all such charges against the plaintiff were dismissed on August 4, 2022.

28. Upon information and belief, the defendants caused the plaintiff, **ISHMAEL SANDERS**, to be improperly targeted, chased, struck by police vehicle, struck in the face, stopped, detained, improperly searched, assaulted, battered, falsely arrested, falsely imprisoned, falsely and maliciously prosecuted and to have his civil rights violated.

29. Upon information and belief the defendants caused the plaintiff to be unlawfully held at the aforesaid locations, and caused plaintiff to undergo great emotional and mental anguish and emotional and physical harm, and loss of liberty and freedom, and plaintiff was kept and imprisoned against his will, and plaintiff was also forced to undergo great emotional and mental anguish thereafter.

30. Prior to the commencement of this action, on the 9th day of August, 2022 a Notice of Claim was duly served herein on the defendant. Thereafter, on the 7th day of June, 2023, the City of New York conducted a 50-H hearing pursuant to the General Municipal Law. More than thirty days have expired since the filing of the

Notice of Claim and the defendant has failed and neglected to adjust the claim. This action is timely brought.

AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN

31. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "30", above as if fully set forth herein.

32. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at the above location and while the plaintiff was not engaging in, and had not previously engaged in any prior unlawful behavior or shown any indicia of criminality, the defendant, **THE CITY OF NEW YORK**, by and through its employees, defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully and falsely targeted, chased, stopped, stopped by force, tackled, struck with a vehicle, handcuffed, searched, battered, assaulted, arrested, held, detained, threatened and imprisoned the plaintiff.

33. Upon information and belief, plaintiff was unlawfully and falsely targeted, arrested, held, detained, and imprisoned at the above location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search,

holding, detention, arrest, imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants herein.

34. Upon information and belief, plaintiff was unlawfully and falsely arrested, held, detained and imprisoned at the above location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search, detention, arrest, imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants herein and said actions of defendants were done improperly and/or negligently.

35. Upon information and belief, plaintiff was unlawfully and falsely arrested, held, detained and imprisoned at the above location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search, detention, arrest, imprisonment and confinement was all without probable cause or justification and all were done intentionally and with malice.

36. Upon information and belief, all criminal charges against the plaintiff in connection with this incident were dismissed.

37. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or

prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

38. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the plaintiff by the defendants as more fully described herein, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from the defendants, and plaintiff was otherwise injured in an amount exceeding the jurisdictional limits of all lower Courts.

39. Upon information and belief, by the reason of the aforesaid **FALSE ARREST** of the plaintiff, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, from which plaintiff is entitled to damages from defendants, and further, plaintiff is entitled to punitive damages, against P.O./Det. **OSWALD**, P.O./Det. **PICHARDO**, SGT. **ROBINSON** and Lt. **BOWMAN**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION FOR **FALSE IMPRISONMENT**
AGAINST DEFENDANTS, CITY OF NEW YORK, P.O./Det. **OSWALD**,
P.O./Det. **PICHARDO**, SGT. **ROBINSON** and Lt. **BOWMAN**

40. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "39", above as if fully set forth herein.

41. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at the above location and while the plaintiff was not engaging in, and had not previously engaged in any prior unlawful behavior or shown any indicia of criminality, the defendant, **THE CITY OF NEW YORK**, by and through its employees, defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully and falsely targeted, chased, stopped, stopped by force, tackled, struck with a vehicle, handcuffed, searched, battered, assaulted, arrested, held, detained, threatened and imprisoned the plaintiff.

42. Upon information and belief, plaintiff was unlawfully and falsely targeted, arrested, held, detained and imprisoned at the above location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search, detention, arrest, imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants herein.

43. Upon information and belief, plaintiff was unlawfully and falsely arrested, held, detained and imprisoned at the above

location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search, holding, detention, arrest, imprisonment and confinement was all without probable cause or justification and was all precipitated by the unlawful and improper actions of the defendants herein and said actions of defendants were done improperly and/or negligently.

44. Upon information and belief, plaintiff was unlawfully and falsely arrested, held, detained and imprisoned at the above location, from approximately July 15, 2022 at approximately 6:00 p.m. through July 16, 2022. Said stop, search, holding, detention, arrest, imprisonment and confinement was all without probable cause or justification and all were done intentionally and with malice.

45. Upon information and belief, all criminal charges against the plaintiff in connection with this incident were dismissed.

46. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

47. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff by the defendants as

more fully described herein, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from the defendants, and plaintiff was otherwise injured in an amount exceeding the jurisdictional limits of all lower Courts.

48. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, from which plaintiff is entitled to damages from defendants, and further, plaintiff is entitled to punitive damages, against P.O./Det. **OSWALD**, P.O./Det. **PICHARDO**, **SGT. ROBINSON** and **Lt. BOWMAN**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION FOR ASSAULT AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN

49. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "48", above as if fully set forth herein.

50. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at the above location and while the plaintiff was not engaging in, and had not previously engaged in any prior unlawful behavior or shown any indicia of criminality, the defendant, **THE CITY OF NEW YORK**, by and through its employees, defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped, stopped by force, tackled, struck with a vehicle, punched in the face, handcuffed, searched, battered, assaulted, arrested, held, detained, threatened and imprisoned the plaintiff.

51. Upon information and belief, plaintiff was unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped by force, struck with a vehicle, tackled, punched, threatened, assaulted and battered and all such actions were without probable cause or justification and were done improperly and/or negligently.

52. Upon information and belief, plaintiff was unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped by force, struck with a vehicle, tackled, punched, threatened, assaulted and battered and all such actions were

without probable cause or justification and all were done intentionally and with malice.

53. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

54. Upon information and belief, by the reason of the aforesaid **ASSAULT** of the plaintiff by the defendants as more fully described herein, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from the defendants, and plaintiff was otherwise injured in an amount exceeding the jurisdictional limits of all lower Courts.

55. Upon information and belief, by the reason of the aforesaid **ASSAULT** of the plaintiff, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, from which plaintiff is entitled to damages from defendants, and further, plaintiff is entitled to punitive damages, against P.O./Det. **OSWALD**, P.O./Det. **PICHARDO**, SGT. **ROBINSON** and Lt. **BOWMAN**, and

plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR BATTERY AGAINST THE DEFENDANTS, THE CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN

56. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "55", above as if fully set forth herein.

57. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at the above location and while the plaintiff was not engaging in, and had not previously engaged in any prior unlawful behavior or shown any indicia of criminality, the defendant, **THE CITY OF NEW YORK**, by and through its employees, defendants, **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped, stopped by force, tackled, struck with a vehicle, punched in the face, handcuffed, searched, battered, assaulted, arrested, held, detained, threatened and imprisoned the plaintiff.

58. Upon information and belief, plaintiff was unlawfully and falsely targeted, chased, placed in fear of imminent harm,

stopped by force, struck with a vehicle, tackled, punched, threatened, assaulted and battered and all such actions were without probable cause or justification and were done improperly and/or negligently.

59. Upon information and belief, plaintiff was unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped by force, struck with a vehicle, tackled, punched, threatened, assaulted and battered and all such actions were without probable cause or justification and all were done intentionally and with malice.

60. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

61. Upon information and belief, by the reason of the aforesaid **BATTERY** of the plaintiff by the defendants as more fully described herein, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from the defendants, and plaintiff was otherwise injured in an amount exceeding the jurisdictional limits of all lower Courts.

62. Upon information and belief, by the reason of the aforesaid **BATTERY** of the plaintiff, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, from which plaintiff is entitled to damages from defendants, and further, plaintiff is entitled to punitive damages, against **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION AGAINST THE DEFENDANTS, THE CITY OF NEW YORK,
P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt.
BOWMAN

63. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "62", above as if fully set forth herein.

64. Upon information and belief, on or about July 15, 2022 at approximately 6:00 p.m. near 149th Street and 3rd Avenue, City and State of New York, County of Bronx, the plaintiff was lawfully and properly at the above location and while the plaintiff was not engaging in, and had not previously engaged in any prior unlawful behavior or shown any indicia of criminality, the defendant, **THE CITY OF NEW YORK**, by and through its employees, defendants,

P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, unlawfully and falsely targeted, chased, placed in fear of imminent harm, stopped, stopped by force, tackled, struck with a vehicle, handcuffed, searched, battered, assaulted, arrested, held, detained, threatened and imprisoned the plaintiff, and charged the plaintiff with violations of the New York State penal code and/or violations of the New York State Administrative code.

65. Upon information and belief, all such charges against the plaintiff were without probable cause or justification and were brought with malice.

66. Upon information and belief, the defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, cooperated with, advanced and participated in the malicious and false prosecution of the plaintiff.

67. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

68. Upon information and belief, all charges against the plaintiff were unfounded and ultimately dismissed.

69. Upon information and belief, by the reason of the aforesaid **MALICIOUS PROSECUTION** of the plaintiff by the defendants

as more fully described herein, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, for which plaintiff is entitled to damages from the defendants, and plaintiff was otherwise injured in an amount exceeding the jurisdictional limits of all lower Courts.

70. Upon information and belief, by the reason of the aforesaid **MALICIOUS PROSECUTION** of the plaintiff, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of wages, loss of enjoyment of life, from which plaintiff is entitled to damages from defendants, and further, plaintiff is entitled to punitive damages, against **P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN**, and plaintiff was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS PURSUANT TO 42 USC §1983 AGAINST DEFENDANTS
P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt.
BOWMAN

71. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "70", above as if fully set forth hereinafter.

72. Upon information and belief, during all the times herein, the individual defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

73. Upon information and belief, each of the defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, separately and in concert engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States.

74. Upon information and belief, each of the defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, separately and in concert engaged in illegal conduct herein before and hereinafter mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States in falsely targeting, chasing, stopping, striking with a vehicle, punching, detaining, holding, searching, arresting, threatening and imprisoning the plaintiff, and deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution, to wit:

freedom from illegal seizure, illegal search, violative search, assault, battery, illegal detention, coercion and intimidation, all secured by the Constitution of the United States and 42 United States Code Section 1983. Upon information and belief, the defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

75. Upon information and belief, the actions and conduct described herein by P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, constituted a continuing pattern of abuse and misconduct by the New York City Police Department in general and specifically, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived the plaintiff's constitutional rights.

76. Upon information and belief, at all times herein, the defendant, **THE CITY OF NEW YORK**, as well as The New York City Police Department condoned the above unconstitutional conduct by its police officers as is demonstrated and documented by the substantial and reoccurring number of 42 USC § 1983 claims filed against **THE CITY OF NEW YORK** and this official New York City

unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations as well as the above actions by the New York City Police Department Police Officers.

77. Upon information and belief, as a direct and proximate result of the conduct of the defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

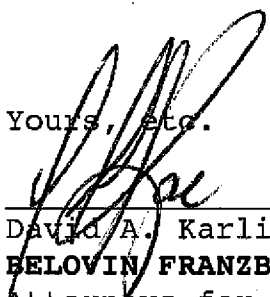
78. Upon information and belief, all said actions done by the defendants against the plaintiff herein were done against the plaintiff's will and plaintiff was aware and did not consent to being held, detained, confined, arrested, assaulted, battered or prosecuted, nor did the plaintiff consent to any of the police action as set forth herein.

79. Plaintiff hereby demands compensation and punitive damages, together with reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

WHEREFORE, plaintiff demands judgment against the defendants, THE CITY OF NEW YORK, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN jointly and severally in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action for FALSE ARREST, and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action for FALSE IMPRISONMENT, in an amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action for ASSAULT, in an amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action for BATTERY, and in an amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action for MALICIOUS PROSECUTION, and in amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action against defendants, P.O./Det. OSWALD, P.O./Det. PICHARDO, SGT. ROBINSON and Lt. BOWMAN for CIVIL RIGHTS VIOLATIONS, plus attorney's fees and punitive damages against all defendants on the Sixth cause of action, together with costs, interest and disbursements of this action, and together with such other and further relief as this Court deems just and proper.

Dated: Bronx, New York

Yours, etc.



David A. Karlin, Esq.

BELOVIN FRANZBLAU & ASSOCIATES, PC

Attorneys for Plaintiff

2311 White Plains Road

Bronx, New York 10467-8106

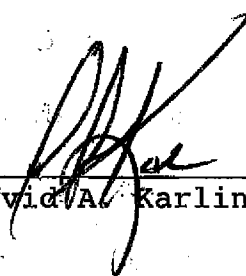
(718) 655-2900

State of New York)
 : ss.:
County of Bronx)

The undersigned, an attorney admitted to practice in the Courts of New York State, shows that the deponent is the attorney of record for the Plaintiff(s) in the within action; deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, deponent believes it to be true. This Verification is made by deponent and not by Plaintiff(s) because Plaintiff(s) are without the county wherein deponent maintains his offices. The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows: independent investigation, records, papers and documents in the file, conversations, communications and correspondence with the Plaintiff(s).

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, New York)
 July 12, 2023



David A. Karlin